

**ADVOCATE NAME**

Enrolment No.: \_\_\_\_\_

Chamber Address: \_\_\_\_\_

Email: \_\_\_\_\_

Contact No.: \_\_\_\_\_

Date: 03.02.2026

**LEGAL NOTICE  
WITHOUT PREJUDICE****To,**

Mr. Suresh Sharma

Resident of \_\_\_\_\_

**Subject:** Legal Notice for eviction from ancestral property, illegal occupation, and consequences arising out of forged challenge to a valid Will.

**Sir,**

Under instructions from and on behalf of my client **Mr. Ramesh Sharma**, S/o Late Mr. Dhanraj Sharma, resident of \_\_\_\_\_, I hereby address you as under:

1. That my client is the younger son of Late Mr. Dhanraj Sharma, who during his lifetime was the absolute owner of the ancestral property situated at Lucknow. My client had been taking continuous care of his ailing father for more than ten years prior to his demise.
2. That appreciating the care, devotion and service rendered by my client, Late Mr. Dhanraj Sharma, while being in sound disposing state of mind, executed his last Will and Testament in favour of my client, thereby bequeathing the said ancestral property exclusively to him.
3. That after the demise of Late Mr. Dhanraj Sharma, you, being the elder son, raised frivolous and false allegations questioning the genuineness of the said Will and forcibly occupied the property without any legal authority.
4. That my client was constrained to institute a civil suit for possession and permanent injunction before the competent Civil Court, wherein the learned Trial Court, after due appreciation of evidence, upheld the validity of the Will and decreed the suit in favour of my client.

5. That aggrieved by the said decree, you preferred an appeal before the Hon'ble High Court, which unfortunately reversed the well-reasoned judgment of the Trial Court by casting unwarranted suspicion upon the Will.

6. That my client is in the process of challenging the said judgment by preferring a Special Leave Petition under Article 136 of the Constitution of India before the Hon'ble Supreme Court of India.

7. That notwithstanding the pendency of legal proceedings, your continued illegal occupation of the property amounts to trespass and harassment, causing immense mental agony and financial loss to my client.

8. Therefore, through this legal notice, you are hereby called upon to **vacate the said property forthwith** and hand over peaceful possession to my client within **15 (fifteen) days** from receipt of this notice, failing which my client shall be constrained to initiate appropriate civil and criminal proceedings at your sole risk as to costs and consequences.

This notice is issued without prejudice to all other legal rights and remedies available to my client under law.

**Advocate for the Notice Sender**